

Cover Note — Referral Partner Agreement Review

To: [Delaware attorney] **From:** Ophir Schultz, Owner, Shipo LLC (310 Cornell Dr, Wilmington, DE 19801) **Re:** Review of attached Referral Partner Agreement (DRAFT) **Date:** _____

Hi [Attorney],

Attached is a draft **Referral Partner Agreement** for Shipo LLC, a Delaware 3PL / FBA-prep and fulfillment business. We use it to pay third parties (freight forwarders, customs brokers, Amazon agencies) a commission for referring clients to us. It has **not been used yet** — I want your review before we send it to any partner.

Business context you'll need:

- Commission is a **one-time \$300** per referral.
- It's paid only when the referred client signs and pays for at least one month at or above our **\$500/month minimum** (so we don't pay out on unprofitable accounts).
- Partners are independent contractors; we'll 1099 them.
- We're a Delaware LLC and want Delaware governing law.
- Partners will sign via DocuSign.

Specific points I'd like you to confirm or fix:

1. **Commission structure (§3)** — Is one-time \$300, gated by the \$500/mo minimum, clean and enforceable? Any issue with the "Qualified Referral" definition?
1. **Clawback (§3.4)** — Best mechanism if a referred client refunds/charges back or churns in the first month — refund vs. offset, and the right cure period.
1. **1099 / W-9 (§4)** — Is our independent-contractor language and W-9-before-payment gate correct for Delaware / federal tax purposes?
1. **Anti-spam / conduct (§5)** — Is the CAN-SPAM and "no guarantees / no tax-benefit claims" language sufficient to protect us if a partner oversells? (Note: our Delaware "0% sales tax" is a *location* fact — partners must not claim it lowers a client's own sales-tax obligation.)
1. **Liability cap & indemnification (§8–§9)** — Is the cap reasonable and are the carve-outs right? Should indemnification be one-way (partner→Shipo) or mutual?
1. **Dispute forum (§10)** — Recommend: Delaware courts vs. binding arbitration, and venue.
2. **Anything missing** — Non-solicitation, IP/trademark use, data protection, or other

clauses you'd expect in a referral agreement for a business like ours.

Please redline directly or send comments. Let me know your fee and turnaround.

Thanks, Ophir Schultz Owner, Shipo LLC ophir@shipousa.com / ophir@getshipo.com — 302-442-2343